

Labour Relations Act 66 of 1995

LABOUR RELATIONS ACT 66 OF 1995

Purpose (s 1)

The purpose of this Act is to advance economic development, social justice, labour peace and the democratisation of the workplace by fulfilling the primary objects of this Act, which are—

- (a) to give effect to and regulate the fundamental rights conferred by section 23 of the Constitution;
- (b) to give effect to obligations incurred by the Republic as a member state of the International Labour Organisation;
- (c) to provide a framework within which employees and their trade unions, employers and employers' organisations can—
 - (i) collectively bargain to determine wages, terms and conditions of employment and other matters of mutual interest; and
 - (ii) formulate industrial policy; and
- (d) to promote—
 - (i) orderly collective bargaining;
 - (ii) collective bargaining at sectoral level;
 - (iii) employee participation in decision-making in the workplace; and
 - (iv) the effective resolution of labour disputes.

Unfair dismissal (Chapter VIII)

A dismissal is unfair if the employer fails to prove that the reason for dismissal is a fair reason related to the employee's conduct or capacity, or based on the employer's operational requirements, and that the dismissal was effected in accordance with a fair procedure (s 188).

Automatically unfair dismissals (s 187) include dismissal for participation in a protected strike, pregnancy, or discrimination on listed grounds.

Dispute resolution

- Conciliation at the Commission for Conciliation, Mediation and Arbitration (CCMA) or a bargaining council.
- Arbitration or adjudication in the Labour Court depending on the nature of the dispute.
- Review of arbitration awards under s 145 on limited grounds.

Organisational rights (Chapter III)

Registered trade unions that are sufficiently representative may acquire rights of access, deduction of subscriptions, election of shop stewards and disclosure of information.

NOTE: Educational summary for SA research demo. Use the official amended Act for practice.

— End of curated extract. Verify official text before reliance. —